

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

CV 12 - 3415

DAMIEN MCKOY,

Plaintiff,

COMPLAINT

-against-

Jury Trial Demanded

SUMMONS ISSUED

Police Officer MICHAEL DUNIGAN, Shield No. 01975; and Police Officers JOHN and JANE DOES 1 through 10, individually and in their official capacities, (the names John and Jane Doe being fictitious, as the true names are presently unknown),

BLOCK, J.
REYES, M.J.

Defendants.

FILED
CLERK
2012 JUL 10 PM 4:34
U.S. DISTRICT COURT
EASTERN DISTRICT
OF NEW YORK

NATURE OF THE ACTION

1. This is an action to recover money damages arising out of the violation of plaintiff's rights under the Constitution.

JURISDICTION AND VENUE

2. This action is brought pursuant to 42 U.S.C. §§ 1983 and 1988, and the Fourth and Fourteenth Amendments to the Constitution of the United States.

3. The jurisdiction of this Court is predicated upon 28 U.S.C. §§ 1331 and 1343.

4. Venue is proper in this district pursuant to 28 U.S.C. §§ 1391 (b) and (c).

JURY DEMAND

5. Plaintiff demands a trial by jury in this action.

PARTIES

6. Plaintiff Damien McKoy ("plaintiff" or "Mr. McKoy") is a resident of Kings County in the City and State of New York.

7. Defendant Police Officer Michael Dunigan, Shield No. 01975 ("Dunigan"), at all times relevant herein, was an officer, employee and agent of the NYPD. Defendant Dunigan is sued in his individual and official capacities.

8. At all times relevant defendants John and Jane Doe 1 through 10 were police officers, detectives or supervisors employed by the NYPD. Plaintiff does not know the real names and shield numbers of defendants John and Jane Doe 1 through 10.

9. At all times relevant herein, defendants John and Jane Doe 1 through 10 were acting as agents, servants and employees of defendant City of New York and the NYPD. Defendants John and Jane Doe 1 through 10 are sued in their individual and official capacities.

10. At all times relevant herein, all individual defendants were acting under color of state law.

STATEMENT OF FACTS

11. At approximately 10:00 p.m. on June 22, 2011, plaintiff was lawfully in front of his residence at 1053 Dean Street in Brooklyn, New York.

12. Plaintiff was taking out the trash at the abovementioned location when he noticed a bottle on his stoop.

13. Plaintiff approached the bottle with the intention of throwing it out along with his garbage.

14. One of the defendant officers approached Mr. McKoy and asked him for identification.

15. Plaintiff went inside his home, retrieved his identification, and provided it to the officer.

16. The officer knew that the bottle did not belong to plaintiff and that he never possessed it.

17. After Mr. McKoy provided the officer with his identification, a supervisor arrived and told the first officer to arrest plaintiff.

18. Plaintiff was then falsely arrested.

19. Plaintiff was handcuffed and taken to a police precinct.

20. Plaintiff was eventually taken to Brooklyn Central Booking.

21. The officers falsely informed employees of the Kings County District Attorney's Office that they had observed plaintiff in possession of an open container of alcohol.

22. The officers had not observed plaintiff in possession of an open container of alcohol.

23. At arraignment, the criminal charges against plaintiff were adjourned in contemplation of dismissal.

24. After spending approximately 28 hours in custody, plaintiff was released.

25. Plaintiff suffered damage as a result of defendants' actions. Plaintiff was deprived of his liberty, suffered emotional distress, mental anguish, fear, pain, anxiety, embarrassment and humiliation.

FIRST CLAIM
Unlawful Stop and Search

26. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

27. Defendants violated the Fourth and Fourteenth Amendments because they stopped and searched plaintiff without reasonable suspicion.

28. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

SECOND CLAIM
False Arrest

29. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

30. Defendants violated the Fourth and Fourteenth Amendments because they arrested plaintiff without probable cause.

31. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

THIRD CLAIM
Failure to Intervene

32. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

33. Those defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.

34. Accordingly, the defendants who failed to intervene violated the Fourth and Fourteenth Amendments.

35. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

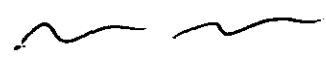
PRAYER FOR RELIEF

WHEREFORE, plaintiff respectfully requests judgment against defendants as follows:

- (a) Compensatory damages against all defendants, jointly and severally;
- (b) Punitive damages against the individual defendants, jointly and severally;
- (c) Reasonable attorneys' fees and costs pursuant to 28 U.S.C. § 1988; and
- (d) Such other and further relief as this Court deems just and proper.

DATED: July 10, 2012
New York, New York

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